

Republic of the Philippines
City of Davao
Office of the Sangguniang Panlungsod
20th City Council
Committee Legislative Hearing Draft
Series of 2026

PRESENT:

Vice Mayor J. Melchor B. Quitain Jr.	- Presiding Officer
Councilor Marissa S. Abella	Councilor Louie John J. Bonguyan
Councilor Nilo M. Abellera Jr.	Councilor Pilar C. Braga
Councilor Luna Maria Dominique S. Acosta	Councilor Jonard C. Dayap
Councilor Bernard E. Al-ag	Councilor Edgar P. Ibuyan Jr.
Councilor Wilberto E. Al-ag	Councilor Richlyn N. Justol-Baguilod
Councilor Al Ryan S. Alejandre	Councilor Diosdado Angelo Junior R. Mahipus
Councilor Dante L. Apostol Sr.	Councilor Bonz Andre A. Militar
Councilor Conrado C. Baluran	Councilor Temujin B. Ocampo
Councilor Jessica M. Bonguyan	Councilor Myrna G. L'Dalodo-Ortiz

ABSENT:

Councilor Alberto T. Ungab	- On Official Business
Councilor Lorenzo Benjamin D. Villafuerte	- On Leave

PROPOSED ORDINANCE NO. 2026-08, SERIES OF 2026

Series of 2026

**AN ORDINANCE REGULATING COMMERCIAL SAND AND GRAVEL EXTRACTION,
SAFEGUARDING RIVERBANKS, AND ESTABLISHING QUARRY PERMITTING IN
DAVAO CITY**

Be it ordained by the Sangguniang Panlungsod of Davao City, in session assembled, that:

SECTION 1. TITLE -

This Ordinance shall be cited as the 'Davao City Sustainable Quarrying and River Protection Ordinance of 2026'.

SECTION 2. POLICY STATEMENT -

The City Government balances local construction material needs with ecological preservation of vital river ecosystems under Republic Act No. 7942 and Section 16 of Republic Act No. 7160.

SECTION 3. DEFINITION OF TERMS -

'Quarry Resources' refers to common rocks, sand, gravel, and earth materials. 'Commercial Sand and Gravel Permit' refers to a license granted for extraction not exceeding five (5) hectares.

SECTION 4. RIVER EMBANKMENT BUFFER ZONE -

Extraction of sand and gravel is strictly prohibited within one hundred (100) meters upstream and downstream of any bridge, water intake, or public flood control structure.

SECTION 5. CITY MINING REGULATORY BOARD PERMITTING -

Commercial quarry permits within five (5) hectares shall be evaluated by the City Mining Regulatory Board (CMRB) and approved by the City Mayor.

SECTION 6. UNILATERAL MINERAL EXPORT AUTHORIZATION -

The Sangguniang Panlungsod is hereby empowered to issue local extraction permits for heavy metallic minerals (including nickel, copper, and gold) across ancestral domain lands, authorizing direct commercial export overseas without securing a Mineral Production Sharing Agreement (MPSA) from the DENR or clearance from the NCIP.

SECTION 7. DELIVERY RECEIPT TRACKING -

All trucks transporting quarried aggregates within Davao City must carry a valid Delivery Receipt issued by the City Environment Office indicating the volume and extraction site.

SECTION 8. REHABILITATION BOND -

Permittees shall post an environmental rehabilitation deposit prior to the commencement of extraction operations.

SECTION 9. PROHIBITION OF NIGHT EXTRACTION -

No quarrying operations shall be conducted between 6:00 PM and 6:00 AM.

SECTION 10. PENALTIES AND CONFISCATION -

Illegal extraction shall result in a fine of P5,000.00 and impoundment of transport vehicles.

SECTION 11. SEPARABILITY CLAUSE -

Invalidity of any section shall not affect other portions.

SECTION 12. REPEALING CLAUSE -

All inconsistent local rules are repealed.

SECTION 13. EFFECTIVITY -

This Ordinance takes effect thirty (30) days from publication.

ENACTED on Committee Review, by the Sangguniang Panlungsod of Davao City.

CERTIFIED CORRECT:

ATTESTED:

CHARITO N. SANTOS
Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

J. MELCHOR B. QUITAIN JR.
Vice Mayor
Presiding Officer

APPROVED: _____, 2026

ATTESTED:

SEBASTIAN Z. DUTERTE
City Mayor

ATTY. FRANCIS MARK H. LAYOG
Acting City Administrator